

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 16, 2026

8:30 a.m./1:30 p.m.

6. ANNE MCNELIS V. FERRIS NUESMEYER

PFL20160411

This matter is before the court for hearing on the Request for Order (RFO) filed by Petitioner on January 26, 2026, as well as an Order to Show Cause (OSC) for Contempt issued January 27, 2026.

OSC Re: Contempt

Proof of service filed January 30, 2026, shows personal service of the OSC upon the Respondent that same day. Therefore, appearances are required at 8:30 a.m., Thursday, April 16, 2026, in Department Five.

RFO Filed January 26, 2026

Petitioner's RFO seeks to (1) impose monetary sanctions against the Respondent under Family Code section 271; and (2) authorize the Petitioner to make life insurance premium payments on Respondent's behalf and require Respondent to reimburse Petitioner, should Respondent fail to make any required premium payments. Petitioner filed a current Income and Expense Declaration (I&E) concurrently with her RFO.

Proof of Service filed January 27, 2026, shows the RFO and supporting documents were served upon the Department of Child Support Services (DCSS) by mail that same day; and Proof of Service filed January 30, 2026, shows personal service upon the Respondent on January 30, 2026.

On February 20, 2026, Petitioner filed another I&E, a copy of which was served upon the Respondent and DCSS via mail that same day, according to the Proof of Service filed February 23, 2026.

On February 27, 2026, the DCSS submitted Respondent's current I&E. Proof of Service filed February 27, 2026, shows a copy of the same was served upon on Petitioner via mail on February 26, 2026.

On March 6, 2026, Petitioner's attorney submitted an "updating declaration." Proof of Service attached to the declaration shows it was served upon Respondent and the DCSS via mail on March 5, 2026.

The RFO shall trail the OSC proceeding.

TENTATIVE RULING #6: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING. THE RFO SHALL TRAIL THE OSC PROCEEDING.